

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMIT MEHTA,
Petitioner

VS.

COURTNEY MEHTA,
Respondent

) Case Number: FDI-25-802312
)
) Hearing Date: May 7, 2026
)
) Hearing Time: 9:00 AM
)
) Department: 403
)
) Presiding: BOBBY P. LUNA
)

REQUEST FOR ORDER RE: BIFURCATE THE ISSUE OF VALIDITY AND ENFORCEABILITY OF
PRENUPTIAL AGREEMENT; COMPEL ARBITRATION IN TEXAS PER PRENUPTIAL
AGREEMENT

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Amit Mehta (Father) and Respondent Courtney Mehta (Mother). They share one minor child: Aadi, age 2 (DOB: 10/22/23).
- 2) At the prior 3/17/26 hearing, the Court granted Father's request to bifurcate of the validity of the parties' premarital agreement and compel arbitration finding that the parties' premarital agreement (attached as Exhibit A to Mother's 12/16/25 Request for Order) requires the parties submit to binding arbitration "any dispute or controversy regarding the validity, interpretation, or enforceability of this agreement, as well as issues involving its enforcement in connection with a dissolution proceeding between the parties." The Court noted this arbitration clause includes an agreement for appointment of an arbitrator who is in good standing with the State Bar of Texas. See Findings and Order After Hearing (FOAH) filed 4/3/26.

1 3) Accordingly, the Court set a review hearing for 5/7/26 at 9 AM in Dept. 403 for the parties to
2 update the Court as to the status of arbitration and ordered the parties submit update declarations
3 to the Court at least 10 days in advance of this hearing. See FOAH filed 4/3/26.

4 4) On 4/27/26, Father filed an update declaration indicating that Father proposed (via email to
5 counsel for Mother on 4/19/26) Judge David Farr (Ret.) or Judge Roy Ferguson (Ret.) to conduct
6 the arbitration of the validity of the parties' premarital agreement. According to Father, both
7 proposed arbitrators are in good standing with the State Bar of Texas. Father states that counsel
8 for Mother responded on 4/21/26, stating that Mother was considering these and other options.
9 Father asserts that he received no further commination – proposals or feedback – from Mother.
10 Father requests the Court appoint Judge David Farr (Ret.) to conduct the arbitration.

11 **B. Findings and Order**

12 1) **The parties are ordered to appear.** Given that Mother failed to file an update declaration as
13 ordered by the Court, the Court is inclined to grant Father's request for the Court to appoint Judge
14 David Farr (Ret.) to conduct the arbitration.